

the street by the means of the construction of a physical barrier...” (*Id.*, *supra*, 97 Cal.App.2d at 241. Emphasis added.) As the California Supreme Court thereafter noted, “[t]he distinctions between these various situations and their impact on the actual value of the property is simply one of degree” and no general rule can be laid down to cover all situations. (See *People v. Sayig* (1951) 101 Cal.App.2d 890, 905; *Bacich v. Board of Control of California* (1943) 23 Cal.2d at 343, 355.)

Based on the foregoing, the Court does not conclude that Shea will not suffer a substantial impairment of access as a matter of law.

4. The City’s Alternative Request

The City requests that, if the Court declines to rule on Issue No. 2 on the present record, the Court should bifurcate trial and try the substantial impairment issue to the Court before any jury trial on compensation. (Suppl. Reply, 7:1-20.) This is the general sequence of events that the Court understands applies, as the issue of substantial impairment is a matter of law for the Court. However, the City did not raise this alternative request with its original moving papers. Nor has Shea had an opportunity to respond to the request made for the first time through the City’s Supplemental Reply. As such, the Parties are directed to appear to discuss the matter with the Court.

.....
John Doe A.R. et al v. Brad Rowell et al

25CV001606

[1] MOTION TO BE RELIEVED AS COUNSEL (as to Plaintiff John Doe A.R.)

TENTATIVE RULING: On July 27, 2026 Counsel filed a Dismissal of Plaintiff John Doe A.R. the instant hearing is, therefore, MOOT.

[2] MOTION TO BE RELIEVED AS COUNSEL (as to Plaintiffs Jane Doe J.M. and John Doe M.W.)

TENTATIVE RULING: The motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

.....
Mayra Aguilar v. General Motors LLC

25CV001964

PLAINTIFF’S MOTION FOR DETERMINATION OF ATTORNEY FEES AND COSTS
UNDER SETTLEMENT AGREEMENT

TENTATIVE RULING: The matter is CONTINUED to September 23, 2026 at 8:30 a.m. in Dept. A. The September 2, 2026 OSC re Dismissal is continued to October 28, 2026 at 8:30 am in Dept. A.

Moving party failed to include in the notice of the motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to (1) prepare an Amended Notice which contains the continued hearing date, as well as notice of the Court’s tentative ruling system as required by Local Rule 2.9, (2) provide timely service of the Amended Notice to all other parties, and (3) file a proof of service of the Amended Notice pursuant to Rules of Court, rule 3.1300, subd. (c).

.....
Water Audit California v. County of Napa et al

25CV002032

[1] [COUNTY DEFENDANTS’] MOTION TO STRIKE PORTIONS OF THIRD
AMENDED VERIFIED PETITION FOR ADMINISTRATIVE WRIT OF MANDATE
AND WRIT OF MANDATE AND COMPLAINT FOR INJUNCTIVE RELIEF

TENTATIVE RULING: The motion is GRANTED IN PART. The Court orders the following STRICKEN from the Third Amended Verified Petition: the individually named defendants in the caption; Paragraphs 16, and 339 through 344 in their entirety; and Paragraphs 3-5 of the Prayer for Relief. The Motion is DENIED in all other respects.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Defendants and Respondents Napa County, Napa County Planning Commission, Napa County Board of Supervisors, Joelle Gallagher, Liz Alessio, Anne Cottrell, Amber Manfree, Belia Ramos (Napa County Board of Supervisors Members), Kara Brunzell, Walter Brooks, Pete Richmond and Megan Dameron (Napa Planning Commission Members) (collectively, County Defendants) move, pursuant to Code of Civil Procedure sections 435 and 436, and California Rules of Court, Rule 3.1322, to strike certain portions of the Third Amended Verified Petition